

HOUSE No. 3004

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing cities and towns to provide a residential exemption to senior citizens.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>
<i>Peter Barbella</i>		<i>1/17/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>

HOUSE No. 3004

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 3004) of James Arciero, Peter Barbella and Colleen M. Garry for legislation to authorize municipalities to provide residential exemptions to senior citizens. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4128 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing cities and towns to provide a residential exemption to senior citizens.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 59 of the general laws is hereby amended by inserting Section 5O, as appearing
2 in the 2019 official edition, to read as

3 follows:

4 Section 5O. With respect to each parcel of real property classified as Class One,
5 residential, in each city or town certified by the commissioner

6 to be assessing all property at its full and fair cash valuation, and at the option of the
7 board of selectmen or mayor, with the approval of the city

8 council, as the case may be, there shall be an exemption equal to not more than 35 per
9 cent of the average assessed value of all Class One,

residential, parcels within such city or town; provided, however, that such an exemption shall be applied only to the principal residence of a

Senior Citizen taxpayer of age 70 or more, as used by the taxpayer for income tax purposes. This exemption shall be in addition to any

exemptions allowable under section five; provided, however, that in no instance shall the taxable valuation of such property after all applicable

exemptions be reduced below ten per cent of its full and fair cash valuation, except through the applicability of clause Eighteenth of

section five. Where, under the provisions of section five, the exemption is based upon an amount of tax rather than on valuation, the reduction

of taxable valuation for purposes of the preceding sentence shall be computed by dividing the said amount of tax by the residential class tax

rate of the city or town and multiplying the result by one thousand dollars. For purposes of this paragraph, "parcel" shall mean a unit of real

property as defined by the assessors in accordance with the deed for such property and shall include a condominium unit.

In those cities and towns in which an exemption is made available hereunder, the Senior Citizen taxpayer aggrieved by the failure to receive

such residential exemption may apply for such residential exemption to the assessors, in writing, on a form approved by the commissioner, on

or before the deadline for an application for exemption under section 59.

A timely application filed hereunder shall, for the purposes of this chapter, be treated as a timely filed application pursuant to section fifty-nine.

For purposes of this section, with respect to real property owned by a cooperative corporation, as defined in section 4 of chapter 157B, that portion

which is occupied by a Senior Citizen member, of age 70 or more, pursuant to a proprietary lease as such member's domicile and is used as such member's

principal residence for income tax purposes shall be deemed to be real property owned by such member for purposes of this section, provided that the portion

of the real estate is represented by the member's share or shares of stock in the cooperative corporation and the percentage of such portion to the whole is the

percentage of such member's shares in the cooperative corporation to the total outstanding stock of the corporation, including shares owned by the

corporation. Such portion of such real property shall be eligible for exemption from taxation pursuant to this section if such member meets all requirements for

such exemption. Any exemption so provided shall reduce the taxable valuation of the real property owned by the cooperative corporation; provided, however,

that the reduction in taxes realized thereby shall be credited by the cooperative corporation against the amount of such taxes otherwise payable by or chargeable to such member. Nothing in this paragraph shall be construed to affect the tax status of any

- 50 manufactured home or mobile home under this chapter, but shall apply to the land on which such
- 51 manufactured home or mobile home is located if all other requirements of this paragraph are met.
- 52 This paragraph shall take effect in a city or town upon its acceptance by the city or town.